

- (b) “notified station “ means a station declared to be a notified station under Sec. 89 ;
- (c) “State Government” in relation to a notified station, means the government of the State in which such station is situated, or where such station is situated in a Union territory, the administration of that Union territory appointed under Art. 239 of the Constitution.

Comment

Section 88 defines certain words and expressions used in Chapter X

89. Power to declare notified stations.- (1) The Central Government may , if it is satisfied that it is necessary that goods entrusted for carriage by train intended solely for the carriage of goods to any railway station should be removed without delay from such railway station, declare, by notification, such railway station to be a notified station for such period as may be specified in the notification :

Provided that before declaring any railway station to be a notified station under this Sub-Section, the Central Government shall have regarded to all or any of the following factors, namely :-

- (a) the volume of traffic and the storage space available at such railway station ;
- (b) the nature and quantities of goods generally booked to such railway station ;
- (c) the scope for causing scarcity of such goods by not removing them for long periods from such railway station and the hardship which such scarcity may cause to the community ;
- (d) the number of wagons likely to be held up at such railway station if goods are not removed there from quickly and the need for quick movement and availability of such wagons ;
- (e) Such other factors (being relevant from the point of view of the interest of the general public) as may be prescribed :

Provided further that the period specified in any notification issued under this subsection in respect of any railway station shall not exceed six months in the first instance, but such period may by notification, be extended from time to time by a period not exceeding six months on each occasion.

(2) If any person entrusting any goods to a railway administration to be carried to a notified station makes an application in which form and manner as may be prescribed and specifies therein the address of the person to whom intimation by registered post of the arrival of the goods at the notified station shall be given and pays the postage of the arrival of the goods at the notified station shall be given and pays the postage charges required for giving such intimation, the railway administration shall, as soon as may be after the arrival of the goods at the notified station, shall such intimation accordingly.

(3) There shall be exhibited at a conspicuous place at each notified station a statement in the prescribed form setting out the description of the goods which by reason of the fact that they have not been removed from the station within a period of seven days from the termination of transit thereof are liable to be sold, in accordance with the provision, of sub-section (1) of sec. 90 by public auction and the dates on which they would be do sold :

Provided that different statements may be so exhibited in respect of goods proposed to be sold on different dates.

(4) If the goods specified in any statement to be exhibited under sub-section (3) include essential commodities, the railway servant preparing the statement shall, as soon as may be after the preparation of such statement, forward a copy thereof to -

- (a) the representative of the Central Government nominated by that Government in this behalf ;
- (b) the representative of the State Government, nominated by that Government in this behalf; and
- (c) the District Magistrate within the local limits of whose jurisdiction the railway station is situated.

Comment

Section 89, sub-section (1) empowers the Central Government to declare a station to be notified station for the purposes of removing consignment without delay under the circumstances specified therein.

Sub-section (2) lays down the manner of giving notice of goods carried to a notified station.

Sub-section (3) provides that goods not removed from a notified station within seven days from the termination of transit may be sold under sub-clause (1) of Cl. 88 by public auction.

Sub-section (4) provides that if the goods to be sold include essential commodities, the copy of statement may be sent to the representative of the Central Government, the State Government and the District Magistrate within whose local limits such notified station is situated.

90. Disposal of unremoved goods at stations.- (1) If any goods entrusted for carriage to any notified station by a train intended solely for the carriage of goods are not removed from such station by a person entitled to do so within a period of seven days after the termination of transit thereof at such station, the railway administration may, subject to the provisions of sub-section (2), sell such goods by public auction and apart from exhibiting, in accordance with the provisions of sub-sections (3) of Sec. 89, a statement containing a description of such goods, it shall not be necessary to give any notice of such public auction, but the date on which such auction may be held under this sub-section may be notified in one or more local newspapers, or where there are no such newspapers, in such manner as may be prescribed :

Provided that if at any time before the sale of such goods under this sub-section, the person entitled thereto pays the freight and other charges and the expenses due in respect thereof to the railway administration, he shall be allowed to remove such goods.

(2) If any goods which may be sold by public auction under sub-section (1) at a notified station, being essential commodities, are required by the Central Government or the State Government for its own use or if the Central Government or such State Government considers that it is necessary for securing the availability of all or any such essential commodities at fair prices to do, it may, by order in writing, direct the railway servant in-charge of such auction to transfer such goods to it or to such agency, co-operative society or other person (being an agency, co-operative society or other person subject to the control of the Government) engaged in the business of selling such essential commodities as may be specified in the direction.

(3) Every direction issued under sub-section (2) in respect of any essential commodity shall be binding on the railway servant to whom it is issued and the railway administration and it shall be a sufficient defence against any claim by the person entitled to the goods that such essential commodities have been transferred in compliance with such direction :

Provided that –

- (a) such direction shall not be binding on such railway servant or the railway administration –